



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session
Majority Research Staff*

[HB 2665](#): manslaughter; online advice; encouragement

CARTER P FLOOR AMENDMENT

1. Specifies that a person also commits manslaughter if they intentionally provide advice or encouragement through a directed communication that a minor uses to die by suicide, with the knowledge that the minor intends to die by suicide.

CARTER P SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2665

I move the following SUBSTITUTE amendment to the PUBLIC SAFETY & LAW ENFORCEMENT Committee Amendment to
HOUSE BILL 2665 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:
2 Section 1. Section 13-1103, Arizona Revised Statutes, is amended to
3 read:
4 13-1103. Manslaughter; classification; definition
5 A. A person commits manslaughter by doing any of the following:
6 1. Recklessly causing the death of another person.
7 2. Committing second degree murder as prescribed in section
8 13-1104, subsection A on a sudden quarrel or heat of passion resulting
9 from adequate provocation by the victim.
10 3. Intentionally providing the physical means that another person
11 uses to die by suicide, with the knowledge that the person intends to die
12 by suicide.
13 4. Committing second degree murder as prescribed in section
14 13-1104, subsection A, paragraph 3, while being coerced to do so by the
15 use or threatened immediate use of unlawful deadly physical force on the
16 person or a third person that a reasonable person in his situation would
17 have been unable to resist.
18 5. Knowingly or recklessly causing the death of an unborn child by
19 any physical injury to the mother.
20 B. A person who is at least eighteen years of age commits
21 manslaughter by intentionally providing advice[;] [or] encouragement
22 [or][, INCLUDING BY] A DIRECTED COMMUNICATION[,] that a minor uses to die
23 by suicide with the knowledge that the minor intends to die by suicide.
24 C. An offense under subsection A, paragraph 5 of this section
25 applies to an unborn child in the womb at any stage of its development. A

1 person shall not be prosecuted under subsection A, paragraph 5 of this
2 section if any of the following applies:
3 1. The person was performing an abortion for which the consent of
4 the pregnant woman, or a person authorized by law to act on the pregnant
5 woman's behalf, has been obtained or for which the consent was implied or
6 authorized by law.
7 2. The person was performing medical treatment on the pregnant
8 woman or the pregnant woman's unborn child.
9 3. The person was the unborn child's mother.
10 D. Manslaughter is a class 2 felony.
11 E. FOR THE PURPOSES OF THIS SECTION, "DIRECTED COMMUNICATION":
12 1. MEANS ANY VERBAL, WRITTEN OR ELECTRONIC COMMUNICATION, INCLUDING
13 THROUGH SOCIAL MEDIA POSTS, TEXT MESSAGING OR OTHER ONLINE PLATFORMS, THAT
14 IS SPECIFICALLY ADDRESSED TO OR REASONABLY UNDERSTOOD TO BE DIRECTED AT
15 THE MINOR WHO DIES BY SUICIDE.
16 2. INCLUDES AN ONLINE POST, MESSAGE OR OTHER CONTENT THAT
17 IDENTIFIES, TAGS OR IS OTHERWISE SPECIFICALLY DIRECTED AT THE MINOR WHO
18 DIES BY SUICIDE.
19 3. DOES NOT INCLUDE GENERAL PUBLIC COMMENTARY, ARTISTIC EXPRESSION
20 OR DISCUSSION OF SUICIDE OR MENTAL HEALTH THAT IS NOT SPECIFICALLY
21 DIRECTED AT THE MINOR WHO DIES BY SUICIDE.
22 Sec. 2. Short title
23 This act may cited as "Cade's Law: If You See Something Say
24 Something".

25 Enroll and engross to conform
26 Amend title to conform

PAMELA CARTER

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